

The Orissa Debt Bondage Abolition Regulation, 1948

Source: <https://indiankanoon.org/doc/162996512/>

[Skip to main content](#)

[Legal Document View](#)

[Tools for analyzing structure and cite text of judgments](#)

[Unlock Advanced Research with](#)

[PRISM](#)

[AI](#)

[Integrated with over 4 crore judgments and laws ? designed for legal practitioners, researchers, students and institutions](#)

-

[Know your Kanoon](#)

-

[Doc Gen Hub](#)

-

[Counter Argument](#)

-

[Case Predict AI](#)

-

[Talk with IK Doc](#)

-

...

[Upgrade to Premium](#)

[Cites

0

, Cited by

0

]

State of Odisha - Act

The Orissa Debt Bondage Abolition Regulation, 1948

ODISHA

India

The Orissa Debt Bondage Abolition Regulation, 1948

Act 1 of 1948

Published on 18 June 1948

Commenced on 18 June 1948

[This is the version of this document from 18 June 1948.]

[Note: The original publication document is not available and this content could not be verified.]

The Orissa Debt Bondage Abolition Regulation, 1948

Orissa Regulation 1 of 1948

[Dated 18th June, 1948]

A regulation to abolish the system of debt bondage and to make provision regarding agreements for the performance of certain kinds of labour in the Ganjam Agency Tracts, the District of Koraput and the Nawapara subdivision of the District of Sambalpur which are partially excluded of the Province of Orissa.

Whereas it is expedient to abolish the system of debt bondage and to make provision regarding agreements for the performance of certain kinds of labour in the Ganjam Agency Tracts, the district of Koraput and the Nawapara subdivision in the district of Sambalpur which are partially excluded areas of the Provinces of Orissa.

Now, Therefore, in exercise of the powers conferred by Sub-Section (2) of Section 92 of the Government of India Act, 1935, the Governor of Orissa is pleased to make the following Regulation for the said partially excluded areas :

1.

Short title and commencement.

(1)

This Regulation may be called the Orissa Debt, Bondage Abolition Regulation, 1948.

(2)

It extends to the Ganjam Agency Tracts, the district of Koraput and the Nawapara Sub-division of the district of Sambalpur.

(3)

It shall come into force at once.

2.

Definition.

- In this Regulation unless there is anything repugnant in the subject or context -

(i)

"advance" means an advance with or without interest of money or in kind or partly of money and partly in kind and includes any transaction which is substantially an advance;

(ii)

"agent" means the agent to the [State]

[Substituted by the Adaptation of Laws Order, 1950, for 'Provincial'.]

Government;

(iii)

"employer" means a person for whom a labourer is under the terms of an agreement bound to perform labour;

(iv)

"gothi agreement" means an agreement written or oral, or partly written and partly oral, wherein the consideration for the performance of labour by any person is a debt due by that person and the interest, if any, on such debt and includes any transaction which is substantially such an agreement;

(v)

"labour" means agricultural labour, and includes domestic service or labour whether indoor or outdoor;

(vi)

"labour agreement" means-

(a)

an agreement written or oral, or partly written and partly oral wherein the consideration for the performance of labour by any person is or includes an advance exceeding the equivalent of one month's fair and equitable remuneration made or to be made to such person or at his request to some one else and the interest, if any, on such advance; and

(b)

an agreement by which a person in consideration of performance of labour by a minor receives money or its equivalent in kind from another person;

(vii)

"labourer" means a person under the terms of an agreement is bound to perform labour;

3.

Future gothi agreement void.

- A gothi agreement entered into after the commencement of this Regulation shall be wholly void.

4.

Future labour agreement unless satisfies certain conditions void.

- A labour agreement entered into after commencement of this Regulation shall be wholly void -

(i)

if the full terms of the agreement between the parties are not expressed in writing or if a copy of such agreement is not filed in the office of the Special Assistant Agent or the Sub-divisional Officer, as the case may be, or any other authority appointed by the [State]

[Substituted by the Adaptation of Laws Order, 1950, for 'Provincial'.]

Government in that behalf; or

(ii)

if the advance with the interest thereon, if any, is not a fair and equitable remuneration of the labourer for the period during which he has to perform labour; or

(iii)

if the period express or implied during which the labour is to be performed exceeds or might in any possible event exceed one year; or

(iv)

where provision is made for interest, if the interest provided is not simple interest at the rate not exceeding six and one-fourth per cent per annum.

Explanation - For the purpose of this Regulation remuneration shall not be deemed to be fair and equitable if it is less than the amount which the [State]

[Substituted by the Adaptation of Laws Order, 1950, for 'Provincial'.]

Government may from time to time by notification fix or, where the amount has not been so fixed if it is less than fourteen rupees a month where the labourer is not fed by the employer or five rupees a month where the labourer is fed by the employer.

5.

Liability to perform labour extinguished in the expiry of the period specified in the agreement.

- All liability to perform labour under a valid labour agreement shall be extinguished on the expiry of the period specified in such agreement.

6.

Right of labour to pay off amount due and free himself from the obligation to perform labour.

- A labourer shall be at liberty to pay off any balance due put of the advance together with the interest thereon, if any, at any time during the subsistence of a valid labour agreement, and free himself of any obligation to perform labour under the agreement.

7.

Collateral agreement by a labourer void.

- A labourer who has entered into a labour agreement shall not be bound to execute any other document in respect of the advance or interest thereon. If any other document is executed by a labourer, it shall be wholly void.

8.

Labour agreement void on death of labourer and liability to labour extinguished.

- Every labour agreement referred to in Section 4 shall lapse on the death of the labourer and no liability under the labour agreement shall survive against the estate of the deceased labourer or against any of his heirs.

9.

Special provision in respect of subsisting gothi and labour agreements.

(1)

A gothi or labour agreement at the commencement of this Regulation shall be wholly void unless its terms are settled; as though it were a labour agreement entered into after the commencement of this Regulation, under Sub-Section (2) and a copy thereof as so settled is filed in the office of the Special Assistant Agent or the Sub-divisional Officer, as the case may be, or any authority appointed by the [State]

[Substituted by the Adaptation of Laws Order, 1950, for 'Provincial'.]

Government under Clause (i) of Section 4.

(2)

Any party to a gothi or labour agreement subsisting at the commencement of this Regulation may apply to any officer empowered by the [State]

[Substituted by the Adaptation of Laws Order, 1950, for 'Provincial'.]

Government in that behalf for the settlement of the terms of such agreement as though it were a labour agreement entered into after the commencement of this Regulation and such settlement shall be binding on the parties to the agreement. A copy of the agreement as so settled shall be filed in the office of the Special Assistant Agent or the Sub-divisional Officer, as the case may be, or any authority appointed by the [State]

[Substituted by the Adaptation of Laws Order, 1950, for 'Provincial'.]

Government under Clause (i) of Section 4.

10.

Penalty for obtaining labour in pursuance of a void agreement.

- Whoever obtains labour from a person in pursuance of an agreement which is void under this Regulation shall be punishable with fine which may extend to two hundred rupees or in default with imprisonment which may extend to six months.

11.

Any employer who.

-

(i)

fails to file in the office of the Special Assistant Agent or the Sub-divisional Officer, as the case may be, or any authority appointed under Clause (i) of Section 4, a copy of a labour agreement entered into after the commencement of this Regulation, or of a gothi or labour agreement, the terms of which have been settled under Sub-Section (2) of Section 9; or

(ii)

fails to pay the labourer his remuneration or fails to feed him when according of the terms of the agreement he is bound to feed the labourer, shall be punishable with fine which may extend to two hundred rupees or in default with imprisonment which may extend to six months.

12.

Termination of agreement by employer.

- (i) If, during the period of a valid labour agreement or of a gothi or labour agreement settled under Sub-Section (2) of Section 9, a labourer without just cause withholds the stipulated labour or does not perform it with reasonable assiduity, the employer may give to the labourer one month's notice in writing of his intention to terminate the agreement and file a copy of such notice in the office of the Special Assistant Agent or the Sub-divisional Officer, as the case may be, or the other authority in which a copy of the original agreement was filed. On the expiration of one month from the date of such notice or of filing the copy thereof as aforesaid, whichever is later, the agreement shall terminate and thereupon the employer may apply to the Special Assistant Agent or the Sub-divisional Officer, as the case may be, for the recovery of the money value of the labour withheld or not performed till the termination of the agreement and the balance of the principal of the advance or of the debt due on the date of the termination of such agreement together with interest thereon, if any.

(2)

If upon such application it is proved to the satisfaction of the Special Assistant Agent or the Sub-divisional Officer, as the case may be, that the labourer without just cause has withheld the stipulated labourer did not perform it with reasonable assiduity, he may pass an order directing the labour to pay the employer such sum not exceeding the money value of the labour withheld or not performed till the termination of the agreement and the balance of the principal of the advance or of the debt due on the date of the termination of the agreement together with the interest, if any.

(3)

Any sum payable to the employer under an order made under Sub-Section (2) may be recovered on application to the Magistrate having, jurisdiction where the labour by whom the money is payable is for the time being resident, by the distress and sale of any movable property belonging to the labourer which is within the limits of the Magistrate's jurisdiction.

13.

Trial of offence.

- No offence punishable by, or under this Regulation shall be tried by Court inferior to that of the Special Assistant Agent or the Sub-divisional Officer, as the case may be.

14.

Institution of prosecution and composition of offence.

(1)

No prosecution for an offence under this Regulation shall be instituted except by an officer of the Land Revenue Department not being below the rank of Deputy Tahasildar, or Tahasildar as the case may be.

(2)

Any such officer may accept from any person reasonably suspected of having committed an offence under this Regulation a sum of money by way of composition for the offence. On payment of such sum of money to such officer no

further proceedings shall be taken against such person in respect of such offence.

15.

Appeals.

- An appeal shall lie to the Agent to the [State]

[Substituted by the Adaptation of Laws Order, 1950, for 'Provincial'.]

Government or to the Deputy Commissioner, as the case may be, from any sentence of fine exceeding fifty rupees passed under this Regulation. Such appeal shall be preferred within thirty days from the date of the sentence appealed against.

16.

Decision of the Tahasildar or Deputy Tahasildar.

(1)

If any dispute arises between the employer and the labourer in respect of a valid labour agreement or of a gothi or labour agreement settled under Sub-Section (2) of Section 9, the Tahasildar or Deputy Tahasildar, as the case may be, having jurisdiction may on the application of the employer or labourer decide such dispute and pass such order as he may deem fit and every such order shall be binding on the employer and the labourer.

(2)

Any sum payable under an order made under sub-Section (1) may be recovered on application to the Magistrate having jurisdiction where the person by whom the money is payable is for the time being resident, by the distress and sale of any movable property belonging to that person which is within the limits of the Magistrate's jurisdiction.

(3)

The Special Assistant Agent or the Sub-divisional Officer, as the case may be, may revise any order passed under this section by Tahasildar or Deputy Tahasildar.

17.

Revision by Agent.

- The Agent to the [State]

[Substituted by the Adaptation of Laws Order, 1950, for 'Provincial'.]

Government or the Deputy Commissioner, as the case may be, revise any order or sentence passed under this Regulation against which no appeal lies.

18.

Orders of Agent final.

- The orders of the Agent to the [State]

[Substituted by the Adaptation of Laws Order, 1950, for 'Provincial'.]

Government or the Deputy Commissioner, as the case may be, passed on appeal or revision shall, subject to the provisions of Section 19, be final.

19.

Revision by State Government.

- The [State]

[Substituted by the Adaptation of Laws Order, 1950, for 'Provincial'.]

Government may revise any order of the Agent to the [State]

[Substituted by the Adaptation of Laws Order, 1950, for 'Provincial'.]

Government or the Deputy Commissioner, as the case may be, be passed on appeal or revision.

20.

Exemption from fees.

- No fee shall be charged in connection with any document, exemption complaint, application or appeal filed by a member of a hill-tribe under this Regulation.

Explanation - For the purpose of this section the expression "hill-tribe" shall mean -

(a)

in the Ganjam Agency Tracts and the district of Koraput any body or class of persons resident therein not being a landlord as defined in the Madras Estates Land Act, 1908;

(b)

in the Nawapara Sub-division of the district of Sambalpur any body or class of persons resident therein with exceptions,

if any;
that may be notified by the [State]
[Substituted by the Adaptation of Laws Order, 1950, for 'Provincial'.]
Government as such from time to time;

21.

Jurisdiction of Civil Court barred.

- No Civil Court shall have jurisdiction in respect of any matter arising under this Regulation.

23.

Saving.

- Nothing contained in this Regulation shall apply to the grant of advances to labourers not exceeding the equivalent of one month's fair and equitable remuneration.

Related AI tags, queries and research notes

Translation